

Memo.No.8/Spl.C/A1/2011, G.A. (Spl.C) Dept., dt.18.02.2011 regarding instructions on furnishing of draft articles of charges etc. through the A.P.V.C.

Subject Heading : Furnishing of draft articles of charge, statement of imputations, list of records and list of statement of witnesses to the competent authorities through the A.P.V.C. – Regarding.

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Ref : Govt.Memo.No.490/SC.E/87, G.A. (SC.E) Dept., dt.13.03.1997.

In the Government Memo. cited, among others, instructions have been issued that in cases enquired into by the A.C.B. which require the imposition of a major penalty, the Anti-Corruption Bureau, while recommending departmental action by the Commissioner for Departmental Enquiries should enclose Draft Articles of Charges with Statement of Imputations (allegations on which each charge is based), List of Witnesses and Documents along with the final report for consideration by the appropriate disciplinary authority.

2. It has been observed that in certain cases when the department deviated from the recommendations of ACB / Advice of V.C. and decided to initiate departmental action (or) decided to entrust the case to T.D.P. or C.O.I. instead of prosecution, the Director General, Anti-Corruption Bureau is furnishing (Part-B report) directly to the department / disciplinary authority without furnishing the draft articles of charge, Statement of imputations etc. through A.P.V.C.

3. The Government have considered the matter carefully and hereby direct the Director General, Anti-Corruption Bureau to furnish the Draft Articles of Charge, Statement of Imputations, List of Records and List of Statement of Witnesses of the Records to the competent authorities through the A.P.V.C. in all cases including the cases in which the recommendations of A.C.B. or advice of A.P.V.C. are deviated and enquiry is entrusted to COI/departmental action etc. instead of prosecution, as advised by Vigilance Commissioner, A.P.V.C.